

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
THURSDAY, AUGUST 20, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**BANK OF AMERICA N.A. v. TRICIA LYNN LANDOF
Case No. CL25-10396**

Motion for Judgment on the Pleadings

TENTATIVE RULINGS:

The unopposed motion for judgment on the pleadings by Plaintiff BANK OF AMERICA N.A. is GRANTED. Defendant LANOF's answer admits the allegations in the complaint.

Judgment is for Plaintiff in the sum of \$13,232.51. Plaintiff may claim attorney's fees and costs as authorized by statute and pursuant to the procedures set forth in the Code of Civil Procedure and California Rules of Court.

**PLUMERIA ACCORD HOLDINGS, LLC v. VALDEZ, et al.
Case No. CU24-05629**

**OSC for Entry of Order of Sale Regarding 3362 Ticonderoga Drive, Fairfield
California 94534**

TENTATIVE RULING

Judgment creditor, judgment debtor(s) and all interested persons to appear.

PLUMERIA ACCORD HOLDINGS LLC seeks an order to compel the sale of 3362 Ticonderoga Drive to satisfy its \$104,167.70 judgment against BEN VALDEZ. The property is a dwelling and prior to causing the Sheriff to levy the judgment on debtor's

interest in the property judgment creditor must obtain a court order of sale following a noticed hearing. (C.C.P. §704.740.)

Judgment creditor estimates the value of the property to be \$581,200. Recorded liens include amounts for Caliber Home Loans and Secretary of Housing and Urban Development.

The main purpose of this hearing is to determine whether a homestead exemption applies, and if so, whether sale of the property will generate sufficient proceeds to pay the homestead exemption and earlier lien holders.

The homestead exemption is automatic and applies whenever sale of the dwelling is compelled.

Real property dwelling—“automatic” exemption: The judgment debtor or other exemption claimant need not file a claim of exemption after a real property dwelling is levied upon. Rather, the judgment creditor is required to obtain a court order for sale of the real property homestead. The court must determine at a hearing the amount of the “dwelling exemption” and the fair market value of the property.

Thereafter, the real property dwelling may not be sold at an execution sale unless the bid exceeds the amount needed to satisfy “all liens and encumbrances” on the property plus the amount of the homestead exemption. [CCP § 704.800(a); see generally, *Wells Fargo Fin'l Leasing, Inc. v. D & M Cabinets* (2009) 177 CA4th 59, 68-69, 99 CR3d 97, 104-105; see also *Rourke v. Troy* (1993) 17 CA4th 880, 885-886, 21 CR2d 660, 664—phrase “all liens and encumbrances” means those that are senior to lien of executing judgment creditor; and ¶ 9:1100 ff. for detailed discussion of homestead execution sales]. Ahart, *California Practice Guide, Enforcing Judgments and Debts* (The Rutter Group 2026), §10:551.

The automatic homestead exemption applies to a dwelling that has been used as the principal dwelling of the judgment debtor and/or their spouse from the time of recording of any abstract of the judgment. (C.C.P. §704.710(c).)

The amount of the automatic homestead exemption is the greater of the median of countywide house sales for a single family home not to exceed \$600,000 or \$300,000 adjusted for CPI since 2022. (See C.C.P. §704.730.)

Under C.C.P. §704.780, if a recorded homestead exists, the burden is on judgment creditor. If not, the burden of proof for a homestead exemption falls on the judgment debtor.

While no express claim for homestead exemption appears to have been filed by the judgment debtor, there is considerable evidence to suggest that the subject residence is the principal residence of the judgment debtor and/or his wife, and has been throughout the duration of this case. Judgment creditor’s moving papers identify Valdez’s last

known address as 3362 Ticonderoga Drive, Fairfield, CA 94534. The summons and complaint were subserved in August 2024 to the subject residence on the judgment debtor by delivery to a woman identified by the process server as “Jane Doe”, for whom a physical description was provided, followed by the word “Wife”. The request for entry of the judgment debtor’s default listed the address to which copies were mailed to him in October 2024 as that subject residence. The default judgment papers were served on the judgment debtor in February 2025 to that same subject residence. The writs of execution submitted to the court for issuance in March and May 2026 each listed the residence address for service by mail on the judgment debtor. And, finally, the service of the OSC and ex parte application papers was made by mail to the judgment debtor at that residence address, as well as personally served on “All Occupants”, on the judgment debtor’s wife, at that subject residence.

The purpose behind the automatic homestead exemption is to avoid rendering a judgment debtor homeless, and the applicable statutes are to be liberally construed to promote that strong public policy purpose.

“Homestead laws are designed to protect the sanctity of the family home against a loss caused by a forced sale by creditors. ... The homestead exemption ensures that insolvent debtors and their families are not rendered homeless by virtue of an involuntary sale of the residential property they occupy. Thus, the homestead law is not designed to protect creditors This strong public policy requires courts to adopt a liberal construction of the law and facts to promote the beneficial purposes of the homestead legislation to benefit the debtor [and his family].” (*Amin v. Khazindar* (2003) 112 Cal.App.4th 582, 588 [5 Cal. Rptr. 3d 224].) At issue here is the “automatic” homestead exemption (also called a “residential exemption”), which need not be memorialized in a recorded homestead declaration, and which is available when a party has continuously resided in a dwelling from the time that a creditor's lien attaches until a court's determination in a forced sale process that the exemption does not apply. (*Ibid.*) “Where a residential exemption is claimed, the judgment creditor is required to obtain a court order for sale of the real property homestead.” (*Id.* at p. 589.)

A homestead exemption does not preclude sale of the home but entitles the homesteader to receive the value of the exemption if the property is sold to satisfy a judgment lien. “When there is sufficient equity in the property, it may be sold and the exemption applies to the sales proceeds that are exempt from the claims of certain creditors and can be used by the debtor to acquire another residence.” (5 Miller & Starr, Cal. Real Estate (3d ed. 2000) Homesteads, § 13:43, p. 87.)

Compliance with section 704.740 affords the following protections to a person entitled to a homestead exemption: A hearing is held, at which the court determines whether a homestead exemption exists. (§§ 704.770, 704.780.) If the court determines a homestead exemption exists, “the court shall determine the amount of the homestead exemption and the fair market value of the dwelling. The court shall make an order for sale of the dwelling subject to the homestead exemption, unless the court determines that the sale of the dwelling would not be likely to produce a bid sufficient to satisfy any

part of the amount due on the judgment pursuant to Section 704.800. The order for sale of the dwelling subject to the homestead exemption shall specify the amount of the proceeds of the sale that is to be distributed to each person having a lien or encumbrance on the dwelling and shall include the name and address of each such person... ." (§ 704.780, subd. (b).) If no bid is received at the sale that exceeds the amount of the homestead exemption plus the amount necessary to satisfy all liens and encumbrances on the property, "the homestead shall not be sold and shall be released and is not thereafter subject to a court order for sale upon subsequent application by the same judgment creditor for a period of one year." (§ 704.800, subd. (a).) If no bid is received that is 90 percent or more of the fair market value determined by the court, the homestead shall not be sold unless the court, upon motion by the judgment creditor, grants permission to accept the highest bid exceeding the minimum bid or makes a new order for sale of the homestead. (§ 704.800.) When the property is sold, the proceeds are distributed in the following order: (1) to the discharge of liens and encumbrances, (2) to the judgment debtor in the amount of the homestead exemption, (3) to reimbursement of the levying officer's costs, (4) to the judgment creditor, and (5) to the judgment debtor in the amount remaining. (§ 704.850.) (*Wells Fargo Financial Leasing, Inc. v. D & M Cabinets* (2009) 177 Cal.App.4th 59, 67-69.)

No opposition to the OSC was filed. The court is prepared to review the value of the liens, the value of the exemption and to determine whether given the FMV identified by judgment creditor the sale would produce any funds that would apply towards the judgment.

DARNELL MOORE v. DONALD HURT, DRH CONSTRUCTION GROUP, and DRH INVESTMENT GROUP, LLC
Case No. CU25-06885

Plaintiff's Motion to Strike Verified Answer

TENTATIVE RULING

Plaintiff DARNELL MOORE's unopposed motion to strike Defendants DONALD HURT and DRH INVESTMENT GROUP, LLC's verified answer filed February 23, 2026 is DENIED.

The court acknowledges that the answer initially contains a general denial despite the fact that Plaintiff filed a verified complaint. Per Code of Civil Procedure section 431.30, subdivision (d), denials of allegations in a verified complaint "shall be made positively or according to the information and belief of the defendant," as opposed to merely being part of a general denial.

But the answer also proceeds to respond to each alleged paragraph.
